Cleveland Division of Police
Detail

Print Date/Time: 10/12/2018 10:55
Login ID: mastroip
Case Number: 2017-00332197

ORI Number: Cleveland Division of Police OHCLP0000

Case Details:

Case Number: 2017-00332197
Location: 9911 OLIVET AVE CLEVELAND,OH 44108

Incident Type: Ethnic Intimidation
Occured From: 10/11/2017 18:30
Occured Thru: 10/11/2017 18:30
Reported Date: 10/11/2017 19:05 Wednesday

Reporting Officer ID: B2584-Boyd
Scene Processed By: 1295-Peoples
Assigned Bureau: 5th District Detective Bureau

Status: Closed Case
Disposition: No Papers - UNFOUNDED

Status Date: 10/11/2017
Disposition Date: 03/17/2018

Case Assignments:

Assigned Officer	Assignment Date/Time	Assignment Type	Assigned By Officer	Due Date/Time
W1053-Warnock	10/12/2017 00:00	Follow Up	2371-Depenti	01/12/2018 00:00

Associated Cases	Status	Assisting ORIs	Role
2017-00332174	Open/Active		

Modus Operandi

Solvability Factors	Weight
There is Physical Evidence To Support that a Crime Occured	5.000
Is The Suspect Described?	5.000
Can The Suspect Be Located?	15.000
The Suspect(s) Can be Named	45.000
Is there a Witness to the Crime?	5.000
	Total: 75.000

Offenses

No.	Group/ORI	Crime Code	Statute	Description	Counts
1	OHCLP0000	13C	621.06	Aggravated Menacing	1
2	OHCLP0000	290	623.02	Criminal Damaging Or Endangering	1
3	State	13C	2927.12	Ethnic Intimidation	1

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ORI Number: OHCLP0000

Offense # 1

Group/ORI: OHCLP0000 **Crime Code:** 13C **Statute:** 621.06 **Counts:** 1 **Attempt/ Commit Code:** Committed
Description: Aggravated Menacing **Offense Date:** 10/11/2017
NCIC Code: 1399 **Scene Code:** Yard or Driveway **Bias/Motivation:** No Bias / Not Applicable

Offense Status:
Status Date:
Occupancy Code:
Arson Code:
Domestic Code: No
Child Abuse:
Gang Related: No
Aiding/Abetting:
Sub-Code:
# of Adults:
# of Juveniles:
IBR Seq. No: 1
Property Damage Amt.:
Abandoned Structure:
Household Status:
Domestic Circumstance:
Carjacking:
Accosting Situation:
Hate Bias Indicator:
Premise Code:
Gambling Motivated:
Order of Protection:
Prior Inv - Victim:
Prior Inv - Offender:
Anit-reproductive rights crime:
Cargo Theft:
Special Circumstances:
Precipitating Event:

Offender Suspected of Using

Alcohol: Yes
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #1:
Aggravated Assault/ Homicide Remarks #1:

Victim Suspected of Using

Alcohol: No
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #2:
Aggravated Assault/ Homicide Remarks #2:

Justifiable Homicide Circumstances :
Justifiable Homicide Code :
Larceny Type:
Method of Entry Type:
Method of Entry :
Point of Entry:
# of Premises Entered :
Method of Exit Type:
Method of Exit :
Point of Exit:
How Left Scene:
Direction of Travel:
Counterfeit Type:
Counterfeit Status:
Counterfeit Amount:

Evidence Collected

Criminal Activity
No Gang Involvement

Tools Used

Security Systems

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Offense # 2

Group/ORI: OHCLP0000 **Crime Code:** 290 **Statute:** 623.02 **Counts:** 1 **Attempt/ Commit Code:** Committed
Description: Criminal Damaging Or Endangering **Offense Date:** 10/11/2017
NCIC Code: 2999 **Scene Code:** Yard or Driveway **Bias/Motivation:** Not Reported By Agency

Offense Status:
Status Date:
Occupancy Code:
Arson Code:
Domestic Code: No
Child Abuse:
Gang Related: No
Aiding/Abetting:
Sub-Code:
# of Adults:
# of Juveniles:
IBR Seq. No: 2
Property Damage Amt.:
Abandoned Structure:
Household Status:
Domestic Circumstance:
Carjacking:
Accosting Situation:
Hate Bias Indicator:
Premise Code:
Gambling Motivated:
Order of Protection:
Prior Inv - Victim:
Prior Inv - Offender:
Anit-reproductive rights crime:
Cargo Theft:
Special Circumstances:
Precipitating Event:

Offender Suspected of Using

Alcohol: Yes
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #1:
Aggravated Assault/ Homicide Remarks #1:

Victim Suspected of Using

Alcohol: No
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #2:
Aggravated Assault/ Homicide Remarks #2:

Justifiable Homicide Circumstances :
Justifiable Homicide Code :
Larceny Type:
Method of Entry Type:
Method of Entry :
Point of Entry:
# of Premises Entered :
Method of Exit Type:
Method of Exit :
Point of Exit:
How Left Scene:
Direction of Travel:
Counterfeit Type:
Counterfeit Status:
Counterfeit Amount:

Evidence Collected Criminal Activity **Tools Used** **Security Systems**

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Offense # 3

Group/ORI: State **Crime Code:** 13C **Statute:** 2927.12 **Counts:** 1 **Attempt/ Commit Code:** Committed
Description: Ethnic Intimidation **Offense Date:** 10/11/2017
NCIC Code: 1316 **Scene Code:** Yard or Driveway **Bias/Motivation:** Anti - Black or African American

Offense Status: Status Date: Occupancy Code:
Arson Code: **Domestic Code:** No Child Abuse:
Gang Related: No Aiding/Abetting: Sub-Code:
# of Adults: # of Juveniles: **IBR Seq. No:** 3
Property Damage Amt.: Abandoned Structure: Household Status:
Domestic Circumstance: Carjacking:
Accosting Situation: Hate Bias Indicator: Premise Code:
Gambling Motivated: Order of Protection: Prior Inv - Victim:
Prior Inv - Offender: Anit-reproductive rights crime: Cargo Theft:
Special Circumstances: Precipitating Event:

Offender Suspected of Using

Alcohol: Yes
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #1:
Aggravated Assault/ Homicide Remarks #1:

Victim Suspected of Using

Alcohol: No
Drugs: No
Computer: No
Aggravated Assault/ Homicide Circumstances #2:
Aggravated Assault/ Homicide Remarks #2:

Justifiable Homicide Circumstances : Justifiable Homicide Code : Larceny Type:
Method of Entry Type: Method of Entry :
Point of Entry: # of Premises Entered :
Method of Exit Type: Method of Exit :
Point of Exit: How Left Scene:
Direction of Travel:
Counterfeit Type: Counterfeit Status: Counterfeit Amount:

Evidence Collected **Criminal Activity** **Tools Used** **Security Systems**

No Gang Involvement

Subjects

Type	No.	Name	Address	Phone	Race	Sex	DOB/Age
Suspect	1	BUCHNER, BRENDAN FREDERICK	9911 OLIVET ST CLEVELAND,OH 44108	(216)309-4208	White	Male	08/31/1969 48
Victim	1	CLARK, CEDRIC DEMINGO	9911 OLIVET AVE CLEVELAND,OH 44108	(216)415-2539	Black	Male	07/06/1990 27
Witness	1	HINES, MYRON D	3532 E 142ND ST CLEVELAND,OH 44120	(216)303-3798	Black	Male	10/10/1980 37

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Subject # **1-Suspect**

Primary:	No	**Suspect Type:**	Suspect				
Name:	BUCHNER, BRENDAN FREDERICK	**Race:**	White	**Sex:**	Male	**DOB:**	08/31/1969
Address:	9911 OLIVET ST	**Height:**	5ft 11 in	**Weight:**	200.0 lbs.	**Build:**	
	CLEVELAND OH 44108	**Eyes:**	Brown	**Hair:**	Brown	**Age:**	48
Primary Phone:	(216)309-4208	**SSN:**		**DVL #:**	1 - MTR VE...	**State:**	OH
Resident Type:	City	**Resident Status:**	Resident			**Statement Type:**	Verbal
Disposition:		**Date:**				**Custody Status:**	

Related Offenses

Group/ORI	Crime Code	Statute	Description
State	13C	2927.12	Ethnic Intimidation
OHCLP0000	290	623.02	Criminal Damaging Or Endangering
OHCLP0000	13C	621.06	Aggravated Menacing

Related Weapons

Victim/Offender Relationship

No.	Type	Name	Relationship
1	Suspect	BUCHNER,BRENDAN FREDERICK	Acquaintance
1	Suspect	BUCHNER,BRENDAN FREDERICK	Neighbor

Transported By:
Domestic Violence:
Condition:
Extent of Injury:
Domestic Violence Referrals:
Medical Treatment:
Hospital:
Federal Agencies Involved:

Injury Types

None

Modus Operandi

Missing Person Information

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ORI Number: Cleveland Division of Police OHCLP0000

Subject # **1-Victim**

Primary:	No	**Victim Type:**	Individual				
Name:	CLARK, CEDRIC DEMINGO	**Race:**	Black	**Sex:**	Male	**DOB:**	07/06/1990
Address:	9911 OLIVET AVE	**Height:**	6ft 2 in	**Weight:**	179.0 lbs.	**Build:**	
	CLEVELAND OH 44108	**Eyes:**	Brown	**Hair:**	Black	**Age:**	27
Primary Phone:	(216)415-2539	**SSN:**		**DVL #:**		**State:**	
Resident Type:	City	**Resident Status:**	Resident			**Statement Type:**	Verbal
Disposition:		**Date:**				**Custody Status:**	

Related Offenses

Group/ORI	Crime Code	Statute	Description
State	13C	2927.12	Ethnic Intimidation
OHCLP0000	290	623.02	Criminal Damaging Or Endangering
OHCLP0000	13C	621.06	Aggravated Menacing

Related Weapons

Victim/Offender Relationship

Transported By:	**Extent of Injury:**	**Hospital:**
Domestic Violence:	**Domestic Violence Referrals:**	**Federal Agencies Involved:**
Condition:	**Medical Treatment:**	

Injury Types

None

Modus Operandi

Missing Person Information

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Subject # **1-Witness**

Primary: No
Name: HINES, MYRON D
Address: 3532 E 142ND ST
CLEVELAND OH 44120
Primary Phone: (216)303-3798
Resident Type:
Disposition:

Race: Black
Height: 5ft 11 in
Eyes: Brown
SSN:
Resident Status: Resident
Date:

Sex: Male
Weight: 245.0 lbs.
Hair: Black
DVL #: 1 - MTR VE...
Statement Type: Verbal
Custody Status:

DOB: 10/10/1980
Build:
Age: 37
State: OH

Related Offenses

Group/ORI	Crime Code	Statute	Description
State	13C	2927.12	Ethnic Intimidation
OHCLP0000	290	623.02	Criminal Damaging Or Endangering
OHCLP0000	13C	621.06	Aggravated Menacing

Related Weapons

Victim/Offender Relationship

Transported By:
Domestic Violence:
Condition:
Extent of Injury:
Domestic Violence Referrals:
Medical Treatment:
Hospital:
Federal Agencies Involved:

Injury Types

None

Modus Operandi

Missing Person Information

Arrests

Arrest No.	Name	Address	Date/Time	Type	Age

Property

Date	Code	Type	Make	Model	Description	Tag No.	Item No.

Vehicles

No.	Role	Vehicle Type	Year	Make	Model	Color	License Plate	State

Routing:

- ☐ Detective Bureau
- ☐ Sex Crimes
- ☐ Homicide
- ☐ Prosecutor's Office

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OfficerID: boydm, Narrative

Title to read: Ethnic Intimidation/Aggravated Menacing/Criminal Damaging/Named Suspect

On Wednesday, October 11, 2017 at 1841 HRS while assigned to ZC 5A22 in company with PO Fixler #1360 we received a code 1 radio assignment to respond to 9911 Olivet #4 for a male attempting to break in and the caller had a firearm. Upon our arrival we spoke with named suspect Brendan Buchner who stated his neighbor knocked on his door and when he opened it his neighbor attempted to strike him, missing 3 or 4 times, and then he had to kick the male away from him. Buchner told my partner and I that he then grabbed a rake to defend himself from his neighbor, later identified as victim Cedric Clark, which caused Clark to retreat into his unit stating "I'mgonna kill you". Buchner further explained his friend, later identified as witness Myron Hines, took the rake away and separated them. Buchner later stated he never kicked the man out of the door but he made several gestures to my partner and I with his hands showing how he moved Cedric out of the doorway without using force.

While speaking with Buchner, I asked about what had happened to the mailbox on unit 3 which had been knocked off ofthe unit and he stated "I took it off. Because he was flirting with my wife." Buchner also stated he damaged a Satellite dish because Cedric was flirting with his wife.

While speaking to Buchner a male dressed in a black hooded sweatshirt and blue jeans was speaking to the members of 5A23 in the front of the apartment building. We asked Buchner to identify the male and he advised us that it was Myron, the male was actually the victim Cedric Clark. After another male walked up to the scene who the named suspect again identified as Myron and then advising us the original male was in fact Cedric Clark.

My partner and I then spoke with Cedric Clark who stated at 1830 HRS he knocked on the named suspects door to speak with Buchner about allegations he had made to his girlfriend in unit 3 earlier in the day. Cedric stated Buchner answered the door stating "Oh you're trying to hit on my wife, I'll kill you". Cedric further explained he then went and got the Property Manager, Witness Myron Hines, and they returned to speak with Buchner. Victim Clark stated the named suspect then came outside and acted like he had a gun in his pocket and said "I have a gun, I'll shoot you" Myron Hines advised the named suspect he was lying and Buchner then retreated into his residence. Clark stated Buchner then returned with a rake held it in a threatening manner and stated "Nigger I'll kill you", Myron then took the rake and Clark left the property and waited down the street on Olivet where he flagged down ZC 5D21 PO Combs #1668. Clark also advised me he did not believe Buchner's threats to be genuine because Buchner was intoxicated.

While interviewing multiple people with multiple stories the named suspect had locked himself in his residence prior to the discovery of the ethnic intimidation from Cedric Clark.

I then conferred with witness Myron Hines who confirmed the victims story and advised us the named suspect was highly intoxicated.

CCS and Commander notified of the Ethnic Intimidation.

CS&Rrequested for photographs, unit 8113, Badge #1295.

- Cedric Clark was given the FBRnumber and advised about prosecution.
- Respectfully request 5th District Detective Bureau follow up.
- WCS Available for this incident is available.

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Redaction Date: Monday, October 15, 2018 10:21:32 AM

Total Number of Redactions: 2

By Exemption:

"Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 2 instances

By Page:

Page 5 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 1 instance
Page 7 - "Motor vehicle/driver record information (including driver's license numbers, license plate numbers, VIN numbers, and the entirety of a driver's license including photos) pursuant to 18 U.S.C. 7521, et seq. (Driver's Privacy Protection Act).
" (MTR VEH/LICENSE): 1 instance